

AMENDMENT TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on March 11, 2022, effective March 14, 2022

1		
2	Rule 4.300. Commitments to nonpenal institutions [Repealed]	2
3	Rule 4.405. Definitions	2
4	Rule 4.406. Reasons.....	5
5	Rule 4.408. Listing of factors not exclusive; sequence not significant	6
6	Rule 4.411.5. Probation officer’s presentence investigation report.....	6
7	Rule 4.414. Criteria affecting probation	8
8	Rule 4.420. Selection of term of imprisonment for offense.....	8
9	Rule 4.421. Circumstances in aggravation	11
10	Rule 4.423. Circumstances in mitigation.....	13
11	Rule 4.424. Consideration of applicability of section 654.....	14
12	Rule 4.425. Factors affecting concurrent or consecutive sentences	14
13	Rule 4.427. Hate crimes.....	15
14	Rule 4.428. Factors affecting imposition of enhancements	16
15	Rule 4.437. Statements in aggravation and mitigation	18
16	Rule 4.447. Sentencing of enhancements	18
17	Rule 4.453. Commitments to nonpenal institutions	19
18		
19		

Rule 4.300. Commitments to nonpenal institutions[Repealed]

~~When a defendant is convicted of a crime for which sentence could be imposed under Penal Code section 1170 and the court orders that he or she be committed to the California Department of Corrections and Rehabilitation, Division of Juvenile Justice under Welfare and Institutions Code section 1731.5, the order of commitment must specify the term of imprisonment to which the defendant would have been sentenced. The term is determined as provided by Penal Code sections 1170 and 1170.1 and these rules, as though a sentence of imprisonment were to be imposed.~~

Advisory Committee Comment

~~Commitments to the Department of Corrections and Rehabilitation, Division of Juvenile Justice (formerly Youth Authority) cannot exceed the maximum possible incarceration in an adult institution for the same crime. (See *People v. Olivas* (1976) 17 Cal.3d 236.)~~

~~Under the indeterminate sentencing law, the receiving institution knew, as a matter of law from the record of the conviction, the maximum potential period of imprisonment for the crime of which the defendant was convicted.~~

~~Under the Uniform Determinate Sentencing Act, the court's discretion as to length of term leaves doubt as to the maximum term when only the record of convictions is present.~~

Rule 4.405. Definitions

As used in this division, unless the context otherwise requires:

(1) * * *

(2) “Base term” is the determinate or indeterminate sentence imposed for the commission of a crime, not including any enhancements that carry an additional term of imprisonment. ~~determinate term in prison or county jail under section 1170(h) selected from among the three possible terms prescribed by statute; the determinate term in prison or county jail under section 1170(h) prescribed by statute if a range of three possible terms is not prescribed; or the indeterminate term in prison prescribed by statute.~~

(3) When a person is convicted of two or more felonies, the “principal term” is the greatest determinate term of imprisonment imposed by the court for any of the crimes, including any term imposed for applicable count-specific enhancements.

- (4) When a person is convicted of two or more felonies, the “subordinate term” is the determinate term imposed for an offense, plus any count-specific enhancements applicable to the offense ordered to run consecutively to the principal term.
- ~~(3)~~ (5) “Enhancement” means an additional term of imprisonment added to the base term.
- (6) “Offense” means the offense of conviction unless a different meaning is specified or is otherwise clear from the context. The term “instant” or “current” is used in connection with “offense” or “offense of conviction” to distinguish the violation for which the defendant is being sentenced from an enhancement, prior or subsequent offense, or from an offense before another court.
- ~~(4)~~ (7) “Aggravation,” or “circumstances in aggravation” “mitigation,” or “circumstances in mitigation” means factors that justify the imposition of the upper prison term referred to in Penal Code section 1170(b) and 1170.1, or factors that the court may consider in exercising discretion authorized by statute and under these rules including imposing the middle term instead of a low term, denying probation, ordering consecutive sentences, or determining whether to exercise discretion pursuant to Penal Code section 1385(c). that the court may consider in its broad sentencing discretion authorized by statute and under these rules.
- (8) “Mitigation” or “circumstances in mitigation” means factors that the court may consider in its broad sentencing discretion authorized by statute and under these rules.
- ~~(5)~~ (9) “Sentence choice” means the selection of any disposition of the case that does not amount to a dismissal, acquittal, or grant of a new trial.
- ~~(6)~~ (10) “Section” means a section of the Penal Code.
- ~~(7)~~ (11) “Imprisonment” means confinement in a state prison or county jail under section 1170(h).
- ~~(8)~~ (12) “Charged” means charged in the indictment or information.
- ~~(9)~~ (13) “Found” means admitted by the defendant or found to be true by the trier of fact upon trial.
- ~~(10)~~ (14) “Mandatory supervision” means the period of supervision defined in section 1170(h)(5)(A), (B).
- ~~(11)~~ (15) “Postrelease community supervision” means the period of supervision governed by section 3451 et seq.

(12) (16) “Risk/needs assessment” means a standardized, validated evaluation tool designed to measure an offender’s actuarial risk factors and specific needs that, if successfully addressed, may reduce the likelihood of future criminal activity.

(13) (17) “Evidence-based practices” means supervision policies, procedures, programs, and practices demonstrated by scientific research to reduce recidivism among individuals under probation, parole, or postrelease supervision.

(14) (18) “Community-based corrections program” means a program consisting of a system of services for felony offenders under local supervision dedicated to the goals stated in section 1229(c)(1)–(5).

(15) (19) “Local supervision” means the supervision of an adult felony offender on probation, mandatory supervision, or postrelease community supervision.

(16) (20) “County jail” means local county correctional facility.

Advisory Committee Comment

~~Following the United States Supreme Court decision in *Cunningham v. California* (2007) 549 U.S. 270, the Legislature amended the determinate sentencing law to remove the presumption that the court is to impose the middle term on a sentencing triad, absent aggravating or mitigating circumstances. (See Sen. Bill 40; Stats. 2007, ch. 3.) It subsequently amended sections 186.22, 186.33, 1170.1, 12021.5, 12022.2, and 12022.4 to eliminate the presumptive middle term for an enhancement. (See Sen. Bill 150; Stats. 2009, ch. 171.) Instead of finding facts in support of a sentencing choice, courts are now required to state reasons for the exercise of judicial discretion in sentencing.~~

The Legislature amended the determinate sentencing law to require courts to order imposition of a sentence or enhancement not to exceed the middle term unless factors in aggravation justify imposition of the upper term and are stipulated to by the defendant or found true beyond a reasonable doubt at trial by the jury or by the judge in a court trial. (See Sen. Bill 567; Stats. 2021, ch. 731.) However, in determining whether to impose the upper term for a criminal offense, the court may consider as an aggravating factor that a defendant has suffered one or more prior convictions, based on certified records of conviction. This exception may not be used to select the upper term of an enhancement.

The court may exercise its judicial discretion in imposing the middle term or low term and must state the facts and reasons on the record for choosing the sentence imposed. In exercising this discretion between the middle term and the low term, the court may rely on aggravating factors that have not been stipulated to by the defendant or proven beyond a reasonable doubt. (*People v. Black* (2007) 41 Cal.4th 799.)

1
2 The Legislature also amended the determinate sentencing law to require courts to order
3 imposition of the low term when the court finds that certain factors contributed to the commission
4 of the crime unless the court finds that it would not be in the interests of justice to do so because
5 the aggravating factors outweigh the mitigating factors. (Pen. Code, § 1170(b)(6).)
6

7 **Rule 4.406. Reasons**
8

9 (a) * * *

10 (b) **When reasons required**
11

12 Sentence choices that generally require a statement of a reason include, but are not
13 limited to:

- 14
- 15 (1) Granting probation when the defendant is presumptively ineligible for
16 probation;
17
- 18 (2) Denying probation when the defendant is presumptively eligible for
19 probation;
20
- 21 ~~(3) Declining to commit an eligible juvenile found amenable to treatment to the~~
22 ~~Department of Corrections and Rehabilitation, Division of Juvenile Justice;~~
23
- 24 ~~(4) (3) Selecting a term for either an offense or an enhancement one of the three~~
25 ~~authorized terms in prison or county jail under section 1170(h) referred to in~~
26 ~~section 1170(b) for either a base term or an enhancement;~~
27
- 28 ~~(5) (4) Imposing consecutive sentences;~~
29
- 30 ~~(6) (5) Imposing full consecutive sentences under section 667.6(c) rather than~~
31 ~~consecutive terms under section 1170.1(a), when the court has that choice;~~
32
- 33 ~~(7) (6) Waiving a restitution fine;~~
34
- 35 ~~(8) (7) Granting relief under section 1385; and~~
36
- 37 ~~(9) (8) Denying mandatory supervision in the interests of justice under section~~
38 ~~1170(h)(5)(A).~~
39

40 **Advisory Committee Comment**
41

42 * * *
43

1 **Rule 4.408. Listing of factors not exclusive; sequence not significant**

2
3 **(a)–(b) * * ***

4 **Advisory Committee Comment**

5
6 The variety of circumstances presented in felony cases is so great that no listing of criteria could
7 claim to be all-inclusive. (Cf., Evid. Code, § 351.)
8

9 The court may impose a sentence or enhancement exceeding the middle term only if the facts
10 underlying the aggravating factor were stipulated to by the defendant or found true beyond a
11 reasonable doubt at trial by the jury or by the judge in a court trial. (Pen. Code, § 1170(b)(2).)
12

13 However, in determining whether to impose the upper term for a criminal offense, the court may
14 consider as an aggravating factor that a defendant has suffered one or more prior convictions,
15 based on certified records of conviction. This exception may not be used to select the upper term
16 of an enhancement. (Pen. Code, § 1170(b)(3).)
17

18 The Legislature also amended the determinate sentencing law to require courts to order
19 imposition of the low term when the court finds that certain factors contributed to the commission
20 of the crime unless the court finds that it would not be in the interests of justice to do so because
21 the aggravating factors outweigh the mitigating factors. (Pen. Code, § 1170(b)(6).)
22

23
24 **Rule 4.411.5. Probation officer's presentence investigation report**

25
26 **(a) Contents**

27
28 A probation officer's presentence investigation report in a felony case must include
29 at least the following:
30

31 (1) A face sheet showing at least:

32
33 (A) The defendant's name and other identifying data;

34
35 (B) The case number;

36
37 (C) The crime of which the defendant was convicted, and any
38 enhancements which were admitted or found true;

39
40 (D) Any factors in aggravation including whether the factors were
41 stipulated to by the defendant, found true beyond a reasonable doubt at
42 trial by a jury, or found true beyond a reasonable doubt by a judge in a
43 court trial;

~~(D)~~ (E) The date of commission of the crime, the date of conviction, and any other dates relevant to sentencing;

~~(E)~~ (F) The defendant's custody status; and

~~(F)~~ (G) The terms of any agreement on which a plea of guilty was based.

(2)–(5) * * *

(6) Any relevant facts concerning the defendant's social history, including those categories enumerated in section 1203.10, organized under appropriate subheadings, including, whenever applicable, "Family," "Education," "Employment and income," "Military," "Medical/psychological," "Record of substance abuse or lack thereof," and any other relevant subheadings. This includes:

(A) ~~F~~acts relevant to whether the defendant may be suffering from sexual trauma, traumatic brain injury, posttraumatic stress disorder, substance abuse, or mental health problems as a result of his or her U.S. military service; and

(B) Factors listed in section 1170(b)(6) and whether the current offense is connected to those factors.

(7)–(9) * * *

(10) Any mitigating factors pursuant to section 1385(c).

~~(10)~~ (11) The probation officer's recommendation. When requested by the sentencing judge or by standing instructions to the probation department, the report must include recommendations concerning the length of any prison or county jail term under section 1170(h) that may be imposed, including the base term, the imposition of concurrent or consecutive sentences, and the imposition or striking of the additional terms for enhancements charged and found.

~~(11)~~ (12) Detailed information on presentence time spent by the defendant in custody, including the beginning and ending dates of the period or periods of custody; the existence of any other sentences imposed on the defendant during the period of custody; the amount of good behavior, work, or participation credit to which the defendant is entitled; and whether the sheriff or other officer holding custody, the prosecution, or the defense wishes that a

1 hearing be held for the purposes of denying good behavior, work, or
2 participation credit.

3
4 ~~(12)~~ (13) A statement of mandatory and recommended restitution, restitution fines,
5 and other fines, fees, assessments, penalties, and costs to be assessed against
6 the defendant; including chargeable probation services and attorney fees
7 under section 987.8 when appropriate, findings concerning the defendant's
8 ability to pay, and a recommendation whether any restitution order should
9 become a judgment under section 1203(j) if unpaid; and, when appropriate,
10 any finding concerning the defendant's ability to pay.

11
12 ~~(13)~~ (14) Information pursuant to ~~Penal Code~~ section 29810(c):

13
14 (A)–(B) * * *

15
16 (b)–(c) * * *

17
18 **Rule 4.414. Criteria affecting probation**

19
20 Criteria affecting the decision to grant or deny probation include facts relating to the
21 crime and facts relating to the defendant.

22
23 (a)–(b) * * *

24
25 **(c) Suitability for probation**

26
27 In determining the suitability of the defendant for probation, the court may consider
28 factors in aggravation and mitigation, whether or not the factors have been
29 stipulated to by the defendant or found true beyond a reasonable doubt at trial by a
30 jury or the judge in a court trial.

31
32 **Advisory Committee Comment**

33
34 * * *

35
36 **Rule 4.420. Selection of term of imprisonment for offense**

37
38 (a) When a ~~sentence~~ judgment of imprisonment is imposed, or the execution of a
39 sentence judgment of imprisonment is ordered suspended, the sentencing judge
40 must, in their sound discretion, order imposition of a sentence not to exceed the
41 middle term, except as otherwise provided in paragraph (b). select the upper,

1 ~~middle, or lower term on each count for which the defendant has been convicted, as~~
2 ~~provided in section 1170(b) and these rules.~~

3
4 **(b)** The court may only choose an upper term when (1) there are circumstances in
5 aggravation of the crime that justify the imposition of an upper term, and (2) the
6 facts underlying those circumstances have been (i) stipulated to by the defendant,
7 (ii) found true beyond a reasonable doubt at trial by a jury, or (iii) found true
8 beyond a reasonable doubt by the judge in a court trial.

9
10 **(c)** Notwithstanding paragraphs (a) and (b), the court may consider the fact of the
11 defendant's prior convictions based on a certified record of conviction without it
12 having been stipulated to by the defendant or found true beyond a reasonable doubt
13 at trial by a jury or the judge in a court trial. This exception does not apply to the
14 use of the record of a prior conviction in selecting the upper term of an
15 enhancement.

16
17 ~~**(b)**~~ **(d)** In selecting between the middle and lower terms of imprisonment, exercising his
18 or her discretion in selecting one of the three authorized terms of imprisonment
19 referred to in section 1170(b), the sentencing judge may consider circumstances in
20 aggravation or mitigation, and any other factor reasonably related to the sentencing
21 decision. The court may consider factors in aggravation and mitigation, whether or
22 not the factors have been stipulated to by the defendant or found true beyond a
23 reasonable doubt at trial by a jury or the judge in a court trial. The relevant
24 circumstances may be obtained from the case record, the probation officer's report,
25 other reports and statements properly received, statements in aggravation or
26 mitigation, and any evidence introduced at the sentencing hearing.

27
28 **(e)** Notwithstanding section 1170(b)(1), and unless the court finds that the aggravating
29 circumstances outweigh the mitigating circumstances such that imposition of the
30 lower term would be contrary to the interests of justice, the court must order
31 imposition of the lower term if any of the following was a contributing factor in the
32 commission of the offense:

33
34 **(1)** The defendant has experienced psychological, physical, or childhood trauma,
35 including, but not limited to, abuse, neglect, exploitation, or sexual violence;

36
37 **(2)** The defendant is a youth, or was a youth as defined under section 1016.7(b)
38 at the time of the commission of the offense; or

39
40 **(3)** Prior to the instant offense, or at the time of the commission of the offense,
41 the defendant is or was a victim of intimate partner violence or human
42 trafficking.

1 (f) Paragraph (e) does not preclude the court from imposing the lower term even if
2 there is no evidence of the circumstances listed in paragraph (e).

3
4 ~~(e)~~ (g) To comply with section 1170(b)(5), a fact charged and found as an enhancement
5 may be used as a reason for imposing a particular term only if the court has
6 discretion to strike the punishment for the enhancement and does so. The use of a
7 fact of an enhancement to impose the upper term of imprisonment is an adequate
8 reason for striking the additional term of imprisonment, regardless of the effect on
9 the total term.

10
11 ~~(d)~~ (h) A fact that is an element of the crime on which punishment is being imposed may
12 not be used to impose a particular term.

13
14 ~~(e)~~ (i) The reasons for selecting one of the three authorized terms of imprisonment
15 referred to in section 1170(b) must be stated orally on the record.

16
17 **Advisory Committee Comment**
18

19 ~~The determinate sentencing law authorizes the court to select any of the three possible terms of~~
20 ~~imprisonment even though neither party has requested a particular term by formal motion or~~
21 ~~informal argument. Section 1170(b) vests the court with discretion to impose any of the three~~
22 ~~authorized terms of imprisonment and requires that the court state on the record the reasons for~~
23 ~~imposing that term.~~

24
25 It is not clear whether the reasons stated by the judge for selecting a particular term qualify as
26 “facts” for the purposes of the rule prohibition on dual use of facts. Until the issue is clarified,
27 judges should avoid the use of reasons that may constitute an impermissible dual use of facts. For
28 example, the court is not permitted to use a reason to impose a greater term if that reason also is
29 either (1) the same as an enhancement that will be imposed, or (2) an element of the crime. The
30 court should not use the same reason to impose a consecutive sentence as to impose an upper
31 term of imprisonment. (*People v. Avalos* (1984) 37 Cal.3d 216, 233.) It is not improper to use the
32 same reason to deny probation and to impose the upper term. (*People v. Bowen* (1992) 11
33 Cal.App.4th 102, 106.)

34
35 The rule makes it clear that a fact charged and found as an enhancement may, in the alternative,
36 be used as a factor in aggravation.

37
38 *People v. Riolo* (1983) 33 Cal.3d 223, 227 (and note 5 on 227) held that section 1170.1(a) does
39 not require the judgment to state the base term (upper, middle, or lower) and enhancements,
40 computed independently, on counts that are subject to automatic reduction under the one-third
41 formula of section 1170.1(a).

1 Even when sentencing is under section 1170.1, however, it is essential to determine the base term
2 and specific enhancements for each count independently, in order to know which is the principal
3 term count. The principal term count must be determined before any calculation is made using the
4 one-third formula for subordinate terms.

6 In addition, the base term (upper, middle, or lower) for each count must be determined to arrive at
7 an informed decision whether to make terms consecutive or concurrent; and the base term for
8 each count must be stated in the judgment when sentences are concurrent or are fully consecutive
9 (i.e., not subject to the one-third rule of section 1170.1(a)).

11 Case law suggests that in determining the “interests of justice” the court should consider the
12 constitutional rights of the defendant and the interests of society represented by the people; the
13 defendant’s background and prospects, including the presence or absence of a record; the nature
14 and circumstances of the crime and the defendant’s level of involvement; the factors in
15 aggravation and mitigation including the specific factors in mitigation of Penal Code section
16 1170(b)(6); and the factors that would motivate a “reasonable judge” in the exercise of their
17 discretion. The court should not consider whether the defendant has simply pled guilty, factors
18 related to controlling the court’s calendar, or antipathy toward the statutory scheme. (See *People*
19 *v. Romero* (1996) 13 Cal.4th 947; *People v. Dent* (1995) 38 Cal.App.4th 1726; *People v.*
20 *Kessel* (1976) 61 Cal.App.3d 322; *People v. Orin* (1975) 13 Cal.3d 937.)

22 **Rule 4.421. Circumstances in aggravation**

24 Circumstances in aggravation include factors relating to the crime and factors relating to
25 the defendant.

27 **(a)–(c) * * ***

29 **Advisory Committee Comment**

31 ~~Circumstances in aggravation may justify imposition of the middle or upper of three possible~~
32 ~~terms of imprisonment. (Section 1170(b).)~~

34 ~~The list of circumstances in aggravation includes some facts that, if charged and found, may be~~
35 ~~used to enhance the sentence.~~

37 Courts may not impose a sentence greater than the middle term except when aggravating factors
38 justifying the imposition of the upper term have been stipulated to by the defendant or found true
39 beyond a reasonable doubt at trial by the jury or the judge in a court trial. These requirements do
40 not apply to consideration of aggravating factors for the lower or middle term. If the court finds
41 that any of the factors listed in section 1170(b)(6)(A–C) were a contributing factor to the
42 commission of the offense, the court must impose the lower term (see rule 4.420(e)) unless the
43 court finds that the aggravating factors outweigh the mitigating factors to such a degree that

1 imposing the lower term would be contrary to the interests of justice. In this instance, since the
2 court is not addressing the imposition of the upper term, the court may consider factors in
3 aggravation that have not been stipulated to by the defendant or found true beyond a reasonable
4 doubt at trial by the jury or the judge in a court trial.

5
6 In determining whether to impose the upper term for a criminal offense, the court may consider as
7 an aggravating factor that a defendant has suffered one or more prior convictions, based on a
8 certified record of conviction. This exception may not be used to select the upper term of an
9 enhancement.

10
11 This rule does not deal with the dual use of the facts; the statutory prohibition against dual use is
12 included, in part, in the comment to rule 4.420.

13
14 ~~Conversely, such facts as infliction of bodily harm, being armed with or using a weapon, and a~~
15 ~~taking or loss of great value may be circumstances in aggravation even if not meeting the~~
16 ~~statutory definitions for enhancements or charged as an enhancement.~~

17
18 ~~Facts concerning the defendant's prior record and personal history may be considered. By~~
19 ~~providing that the defendant's prior record and simultaneous convictions of other offenses may~~
20 ~~not be used both for enhancement and in aggravation, section 1170(b) indicates that these and~~
21 ~~other facts extrinsic to the commission of the crime may be considered in aggravation in~~
22 ~~appropriate cases.~~

23
24 Refusal to consider the personal characteristics of the defendant in imposing sentence may raise
25 serious constitutional questions. The California Supreme Court has held that sentencing decisions
26 must take into account "the nature of the offense and/or the offender, with particular regard to the
27 degree of danger both present to society." (*In re Rodriguez* (1975) 14 Cal.3d 639, 654, quoting *In*
28 *re Lynch* (1972) 8 Cal.3d 410, 425.) In *Rodriguez* the court released petitioner from further
29 incarceration because "it appears that neither the circumstances of his offense *nor his personal*
30 *characteristics* establish a danger to society sufficient to justify such a prolonged period of
31 imprisonment." (*Id.* at p. 655, fn. omitted, italics added.) "For the determination of sentences,
32 justice generally requires . . . that there be taken into account the circumstances of the offense
33 together with the character and propensities of the offender." (*Pennsylvania ex rel. Sullivan v.*
34 *Ashe* (1937) 302 U.S. 51, 55, quoted with approval in *Gregg v. Georgia* (1976) 428 U.S. 153,
35 189.)

36
37 ~~Former subdivision (a)(4), concerning multiple victims, was deleted to avoid confusion. Some of~~
38 ~~the cases that had relied on that circumstance in aggravation were reversed on appeal because~~
39 ~~there was only a single victim in a particular count.~~

40
41 ~~Old age or youth of the victim may be circumstance in aggravation; see section 1170.85(b).~~ Other
42 statutory ~~circumstances~~ factors in aggravation are listed, for example, in sections 422.76, 1170.7,
43 1170.71, 1170.8, and 1170.85, and may be considered to impose the upper term if stipulated to by

1 the defendant or found true beyond a reasonable doubt at trial by a jury or the judge in a court
2 trial.

3
4 **Rule 4.423. Circumstances in mitigation**

5
6 Circumstances in mitigation include factors relating to the crime and factors relating to
7 the defendant.

8
9 **(a) Factors relating to the crime**

10
11 Factors relating to the crime include that:

12
13 (1)–(9) * * *

14
15 (10) If a firearm was used in the commission of the offense, it was unloaded or
16 inoperable.

17
18 **(b) Factors relating to the defendant**

19
20 Factors relating to the defendant include that:

21
22 (1)–(2) * * *

23
24 (3) The defendant experienced psychological, physical, or childhood trauma,
25 including, but not limited to, abuse, neglect, exploitation, or sexual violence
26 and it was a factor in the commission of the crime;

27
28 (4) The commission of the current offense is connected to the defendant's prior
29 victimization or childhood trauma, or mental illness as defined by section
30 1385(c);

31
32 (5) The defendant is or was a victim of intimate partner violence or human
33 trafficking at the time of the commission of the offense, and it was a factor in
34 the commission of the offense;

35
36 (6) The defendant is under 26 years of age, or was under 26 years of age at the
37 time of the commission of the offense;

38
39 (7) The defendant was a juvenile when they committed the current offense;

40
41 (3) (8) The defendant voluntarily acknowledged wrongdoing before arrest or at an
42 early stage of the criminal process;
43

(4) (9) The defendant is ineligible for probation and but for that ineligibility would have been granted probation;

(10) Application of an enhancement could result in a sentence over 20 years;

(11) Multiple enhancements are alleged in a single case;

(12) Application of an enhancement could result in a discriminatory racial impact;

(13) An enhancement is based on a prior conviction that is over five years old;

(5) (14) The defendant made restitution to the victim; and

(6) (15) The defendant's prior performance on probation, mandatory supervision, postrelease community supervision, or parole was satisfactory.

(c) * * *

Advisory Committee Comment

* * *

Rule 4.424. Consideration of applicability of section 654

Before determining whether to impose either concurrent or consecutive sentences on all counts on which the defendant was convicted, the court must determine whether the proscription in section 654 against multiple punishments for the same act or omission requires a stay of execution of the sentence imposed on some of the counts. If a stay of execution is required due to the prohibition against multiple punishments for the same act, the court has discretion to choose which act or omission will be punished and which will be stayed.

Rule 4.425. Factors affecting concurrent or consecutive sentences

Factors affecting the decision to impose consecutive rather than concurrent sentences include:

(a) * * *

(b) Other facts and limitations

Any circumstances in aggravation or mitigation, whether or not the factors have been stipulated to by the defendant or found true beyond a reasonable doubt at trial

1 by a jury or the judge in a court trial, may be considered in deciding whether to
2 impose consecutive rather than concurrent sentences, except:

- 3
- 4 (1) A fact used to impose the upper term;
- 5
- 6 (2) A fact used to otherwise enhance the defendant's sentence in prison or county
7 jail under section 1170(h); and
- 8
- 9 (3) A fact that is an element of the crime, ~~may not be used to impose consecutive~~
10 ~~sentences.~~

11

12 **Advisory Committee Comment**

13

14 * * *

15

16 **Rule 4.427. Hate crimes**

17

18 **(a)–(b)** * * *

19

20 **(c) Hate crime enhancement**

21

22 If a hate crime enhancement is pled and proved, the punishment for a felony
23 conviction must be enhanced under section 422.75 unless the conviction is
24 sentenced as a felony under section 422.7.

- 25
- 26 (1) The following enhancements apply:
- 27
- 28 (A) An enhancement of a term in state prison as provided in section
29 422.75(a). Personal use of a firearm in the commission of the offense is
30 an aggravating factor that must be considered in determining the
31 enhancement term.
- 32
- 33 (B) An additional enhancement of one year in state prison for each prior
34 felony conviction that constitutes a hate crime as defined in section
35 422.55.
- 36
- 37 (2) The court may strike enhancements under (c) if it finds mitigating
38 circumstances under rule 4.423, or pursuant to section 1385(c) and states
39 those mitigating circumstances on the record.
- 40
- 41 (3) The punishment for any enhancement under (c) is in addition to any other
42 punishment provided by law.
- 43

1 (d)–(e) * * *

2 **Advisory Committee Comment**

3
4 Multiple enhancements for prior convictions under subdivision (c)(1)(B) may be imposed if the
5 prior convictions have been brought and tried separately. (Pen. Code, § 422.75(d).)

6
7 In order to impose the upper term based on section 422.75, the fact of the enhancement pursuant
8 to sections 422.55 or 422.6 must be stipulated to by the defendant or found true beyond a
9 reasonable doubt at trial by the jury or the judge in a court trial.

10
11 Any enhancement alleged pursuant to this section may be dismissed pursuant to section 1385(c).

12
13 **Rule 4.428. Factors affecting imposition of enhancements**

14
15 **(a) Enhancements punishable by one of three terms**

16
17 If an enhancement is punishable by one of three terms, the court must, in its sound
18 discretion, order imposition of a sentence not to exceed the middle term, unless
19 there are circumstances in aggravation that justify the imposition of a term of
20 imprisonment exceeding the middle term, and the facts underlying those
21 circumstances have been stipulated to by the defendant, or have been found true
22 beyond a reasonable doubt at trial by the jury or by the judge in a court trial.
23 ~~, in its discretion, impose the term that best serves the interest of justice and state~~
24 ~~the reasons for its sentence choice on the record at the time of sentencing. In~~
25 ~~exercising its discretion in selecting the appropriate term, the court may consider~~
26 ~~factors in mitigation and aggravation as described in these rules or any other factor~~
27 ~~authorized by rule 4.408.~~

28
29 **(b) Striking or dismissing enhancements under section 1385**

30
31 If the court has discretion under section 1385(a) to strike an enhancement in the
32 interests of justice, the court also has the authority to strike the punishment for the
33 enhancement under section 1385(e**b**). In determining whether to strike the entire
34 enhancement or only the punishment for the enhancement, the court may consider
35 the effect that striking the enhancement would have on the status of the crime as a
36 strike, the accurate reflection of the defendant's criminal conduct on his or her
37 record, the effect it may have on the award of custody credits, and any other
38 relevant consideration.

39
40 **(c) Dismissing enhancements under section 1385(c)**

- 1 (1) The court shall exercise the discretion to dismiss an enhancement if it is in
2 the furtherance of justice to do so, unless the dismissal is prohibited by
3 initiative statute.
4
- 5 (2) In exercising its discretion under section 1385(c), the court must consider and
6 afford great weight to evidence offered by the defendant to prove that any of
7 the mitigating circumstances in section 1385(c) are present.
8
- 9 (A) Proof of the presence of one or more of these circumstances weighs
10 greatly in favor of dismissing the enhancement, unless the court finds
11 that dismissal of the enhancement would endanger public safety.
12
- 13 (B) The circumstances listed in 1385(c) are not exclusive.
14
- 15 (C) “Endanger public safety” means there is a likelihood that the dismissal
16 of the enhancement would result in physical injury or other serious
17 danger to others.
18
- 19 (3) If the court dismisses the enhancement pursuant to 1385(c), then both the
20 enhancement and its punishment must be dismissed.
21

22 **Advisory Committee Comment**

23

24 Case law suggests that in determining the “furtherance of justice” the court should consider the
25 constitutional rights of the defendant and the interests of society represented by the people; the
26 defendant’s background and prospects, including the presence or absence of a record; the nature
27 and circumstances of the crime and the defendant’s level of involvement; the factors in
28 aggravation and mitigation including the specific factors in mitigation of section 1385(c); and the
29 factors that would motivate a “reasonable judge” in the exercise of their discretion. The court
30 should not consider whether the defendant has simply pled guilty, factors related to controlling
31 the court’s calendar, or antipathy toward the statutory scheme. (See *People v. Romero* (1996) 13
32 Cal.4th 947; *People v. Dent* (1995) 38 Cal.App.4th 1726; *People v. Kessel* (1976) 61 Cal.App.3d
33 322; *People v. Orin* (1975) 13 Cal.3d 937.)
34

35 How to afford great weight to a mitigating circumstance is not further explained in section 1385.
36 The court is not directed to give conclusive weight to the mitigating factors, and must still engage
37 in a weighing of both mitigating and aggravating factors. A review of case law suggests that the
38 court can find great weight when there is an absence of “substantial evidence of countervailing
39 considerations of sufficient weight to overcome” the presumption of dismissal when the
40 mitigating factors are present. (*People v. Martin* (1996) 42 Cal.3d 437.) In exercising this
41 discretion, the court may rely on aggravating factors that have not been stipulated to by the
42 defendant or proven beyond a reasonable doubt at trial by a jury or a judge in a court trial.
43 (*People v. Black* (2007) 41 Cal.4th 799.)

1
2 **Rule 4.437. Statements in aggravation and mitigation**

3
4 **(a)–(e) * * ***

5
6 **Advisory Committee Comment**

7
8 Section 1170(b)(4) states in part:

9
10 “At least four days prior to the time set for imposition of judgment, either party or the victim, or
11 the family of the victim if the victim is deceased, may submit a statement in aggravation or
12 mitigation to dispute facts in the record or the probation officer’s report, or to present additional
13 facts.”

14
15 This provision means that the statement is a document giving notice of intention to dispute
16 evidence in the record or the probation officer’s report, or to present additional facts.

17
18 The statement itself cannot be the medium for presenting new evidence, or for rebutting
19 competent evidence already presented, because the statement is a unilateral presentation by one
20 party or counsel that will not necessarily have any indicia of reliability. To allow its factual
21 assertions to be considered in the absence of corroborating evidence would, therefore, constitute a
22 denial of due process of law in violation of the United States (14th Amend.) and California (art. I,
23 § 7) Constitutions.

24
25 The requirement that the statement include notice of intention to rely on new evidence will
26 enhance fairness to both sides by avoiding surprise and helping to ensure that the time limit on
27 pronouncing sentence is met. This notice may include either party’s intention to provide evidence
28 to prove or contest the existence of a factor in mitigation that would require imposition of the low
29 term for the underlying offense or dismissal of an enhancement.

30
31 **Rule 4.447. Sentencing of enhancements**

32
33 **(a) Enhancements resulting in unlawful sentences**

34
35 Except pursuant to section 1385(c), Aa court may not strike or dismiss an
36 enhancement solely because imposition of the term is prohibited by law or exceeds
37 limitations on the imposition of multiple enhancements. Instead, the court must:

- 38
39 (1) Impose a sentence for the aggregate term of imprisonment computed without
40 reference to those prohibitions or limitations; and
41

(2) Stay execution of the part of the term that is prohibited or exceeds the applicable limitation. The stay will become permanent once the defendant finishes serving the part of the sentence that has not been stayed.

(b) Multiple enhancements

Notwithstanding section 1385(c), if a defendant is convicted of multiple enhancements of the same type, the court must either sentence each enhancement or, if authorized, strike the enhancement or its punishment. While the court may strike an enhancement, the court may not stay an enhancement except as provided in (a) or as authorized by section 654.

Advisory Committee Comment

Subdivision (a). Statutory restrictions may prohibit or limit the imposition of an enhancement in certain situations. (See, for example, sections 186.22(b)(1), 667(a)(2), 667.61(f), 1170.1(f) and (g), 12022.53(e)(2) and (f), and Vehicle Code section 23558.)

Section 1385(c) requires that in the furtherance of justice certain enhancements be dismissed unless dismissal is prohibited by any initiative statute.

Present practice of staying execution is followed to avoid violating a statutory prohibition or exceeding a statutory limitation, while preserving the possibility of imposition of the stayed portion should a reversal on appeal reduce the unstayed portion of the sentence. (See *People v. Gonzalez* (2008) 43 Cal.4th 1118, 1129–1130; *People v. Niles* (1964) 227 Cal.App.2d 749, 756.)

Only the portion of a sentence or component thereof that exceeds a limitation is prohibited, and this rule provides a procedure for that situation. This rule applies to both determinate and indeterminate terms.

Subdivision (b). A court may stay an enhancement if section 654 applies. (See *People v. Bradley* (1998) 64 Cal.App.4th 386; *People v. Haykel* (2002) 96 Cal.App.4th 146, 152.)

Rule 4.453. Commitments to nonpenal institutions

~~When a defendant is convicted of a crime for which sentence could be imposed under Penal Code section 1170 and the court orders that he or she be committed to the California Department of Corrections and Rehabilitation, Division of Juvenile Justice under Welfare and Institutions Code section 1731.5, the order of commitment must specify the term of imprisonment to which the defendant would have been sentenced. The term is determined as provided by Penal Code sections 1170 and 1170.1 and these rules, as though a sentence of imprisonment were to be imposed.~~

~~Advisory Committee Comment~~

~~Commitments to the Department of Corrections and Rehabilitation, Division of Juvenile Justice (formerly Youth Authority) cannot exceed the maximum possible incarceration in an adult institution for the same crime. (See *People v. Olivas* (1976) 17 Cal.3d 236.)~~

~~Under the indeterminate sentencing law, the receiving institution knew, as a matter of law from the record of the conviction, the maximum potential period of imprisonment for the crime of which the defendant was convicted.~~

~~Under the Uniform Determinate Sentencing Act, the court's discretion as to length of term leaves doubt as to the maximum term when only the record of convictions is present.~~